

ORCE



Photographs by AP

misgivings about restoring the judges without clipping some of their powers.

PPP wanted to make the restoration of the judges part of a larger constitutional package "to reform and strengthen the judiciary". The package would, in effect, reduce the term of the deposed Chief Justice Iftikhar Chaudhry—who before November 3 was due to retire only in 2013—keep in place the current judges who had taken oath under Musharraf's Provisional Constitutional Order, and clip some of the *suo moto* and bench-making powers of the Chief Justice. Of course, a constitutional amendment would have been required to effect such changes. Sharif was unwilling to make the restoration conditional on the amendment, since in his view—and that of the lawyers' movement—this would, in effect, validate Musharraf's "illegal" actions. Legal activists insisted that the restoration should, and could, be done through a simple executive order, a position with which PPP disagreed.

In the end, it was the issue of the judges, rather than any clash of "cultures" or "ideology" that destabilised the coalition. Officially, PPP continued to maintain that the deadlock was over "procedural matters", not over substance or intent. "I do not want to undo an illegal action through another illegal action," explained Zardari. When the first "deadline" of April 30 passed without any resolution, a flurry of meetings between the two leaders followed, first in Dubai—where Zardari had gone to meet his children—and then in London—where Sharif's wife had been hospitalised. The deadline was extended till May 12 but no resolution was reached. In the end, Sharif announced PML-N's withdrawal from the Government. "If we keep extending deadlines, this would become a joke," says PML-N leader Khwaja Asif, who was petroleum and natural resources minister till May 12. "Integrity and principles are important in politics."

BREAKUP: The Zardari (right)-Sharif alliance was always an uneasy one

But was the "breaking up" of the coalition government simply a question of integrity and principles? Many within PPP suspect Sharif's pullout is a calculated move to score points with the public. "Some people like to do what the public likes rather than what is necessary or useful," said PPP's ambassador-designate to US, Hussain Haqqani, in a thinly-veiled reference to his former boss Sharif. Observers agree that Sharif is in a win-win situation since the election results were more favourable than he had expected. He can now take the high road with an eye on the next elections, which pandits believe may not be far off in the future.

But PML-N's pullout is not as drastic as it is being made out to be. Claiming that PML-N "does not want to give an opportunity to pro-dictatorship and anti-democracy forces", Sharif vowed to continue supporting the PPP govern-

ment and not sit with the opposition. Prime Minister Yusuf Reza Gilani refused to accept the resignations of the ministers and PPP also announced that it would keep the cabinet slots vacant till PML-N rejoined it. "The honeymoon may be over," says Asif lightly, "but the marriage will continue."

For its part, PPP—suddenly finding itself painted as the villain by the media and civil society activists—is scrambling to explain its position to the public. "We do not want a clash between institutions," says Haqqani, "and this is what we fear could happen if the judges are restored simply through an executive order and the current Supreme Court issues an order against the move." However, in popular perception, PPP's motives are anything but noble. Most people see PPP's dilly-dallying as a result of Zardari's antipathy to Justice Chaudhry, who, before he was sacked, had issued a stay order against Musharraf's National Reconciliation Ordinance that had wiped out corruption cases against Zardari, Benazir Bhutto and many other PPP leaders. They feel that Zardari fears that a restored and powerful judiciary could strike down the law—since confirmed by the current Supreme

**With half an eye
on the next
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can afford to
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road.**